

2. Plaintiff to prepare the Order after hearing.

9. 9:00 AM CASE NUMBER: L25-08228

CASE NAME: WELLS FARGO BANK, N.A. VS. JOSE SUCHITE

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25) and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

Defendant filed a Declaration in response, on 2/9/26, to which Plaintiff then replied, on 3/23/26.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/15/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/19/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

In the response, Defendant indicates that he did not receive the initial discovery request

and that this Motion was the first time he became aware of the discovery request. He also indicates that he is willing to respond to discovery requests with proper service.

Apparently, however, no responses have been provided as of this writing, 3/25/26, which is well over a month since he acknowledged receiving this Motion along with the accompanying discovery request.

Let this serve as his notice of the discovery request.

Disposition

This Motion will be continued to 6/2/26, 9am, to give Defendant an opportunity to respond to the discovery requests by Plaintiff.

The Defendant will have 10 days from the date of this Order, 4/7/26, to respond to Plaintiff's discovery request.

Plaintiff to file Order.

No further notice to Defendant is necessary.

**10. 9:00 AM CASE NUMBER: N25-1754
CASE NAME: LUCIANA DATTA VS. DEEPAK MOORJANI
HEARING ON REQUEST FOR RESTRAINING ORDER
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

**11. 9:00 AM CASE NUMBER: N25-1754
CASE NAME: LUCIANA DATTA VS. DEEPAK MOORJANI
HEARING IN RE: SPECIAL MOTION TO STRIKE COMPLAINT
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

**12. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
*HEARING ON MOTION IN RE: ORDER TO SHOW CAUSE RE SANCTIONS, TO STRIKE FRAUDULENT
PLEADINGS AND DISQUALIFY COUNSEL
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

13. 9:00 AM CASE NUMBER: N25-2130